Brazoria County District Court

Cause No. 2023-CV-0003

Catherine Duffy, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-31-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, by and through its undersigned counsel, files this Original Answer to Plaintiff's Original Petition and would respectfully show the Court as follows.

I. General Denial

Pursuant to Rule 92 of the Texas Rules of Civil Procedure, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence as required by the Constitution and laws of the State of Texas.

II. Affirmative Defenses

First, Defendant pleads proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Plaintiff's own failure to keep a proper lookout, yield the right-of-way, or exercise ordinary care before turning contributed to the occurrence, and any recovery must be reduced or barred accordingly.

Second, Defendant pleads sole proximate cause and new and independent cause. The conduct of persons or circumstances other than Defendant, including Plaintiff's unexpected entry into the intersection, was the sole proximate cause of the occurrence.

Third, Defendant pleads failure to mitigate damages. Plaintiff failed to take reasonable steps to minimize the alleged damages, and any recovery must be reduced by the amount that reasonable mitigation would have avoided.